

**BEFORE THE
FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges
Washington, D.C.**

**SOUTHERN INTERNATIONAL CO., LTD.,
Complainant,**

v.

Docket No. 25-24

**DAYNAMEZ GROUP OF COMPANIES LLC,
Respondent.**

**COMPLAINANT SOUTHERN INTERNATIONAL CO., LTD.'S
LIMITED RESPONSE AND STATEMENT OF NON-OPPOSITION TO
RESPONDENT'S MOTION FOR EXTENSION OF TIME AND/OR
CLARIFICATION REGARDING WRITTEN DISCOVERY SERVICE DATES**

Complainant Southern International Co., Ltd. ("SIC" or "Complainant") respectfully submits this Limited Response and Statement of Non-Opposition to Respondent Daynamez Group of Companies LLC's Motion for Extension of Time and/or Clarification regarding written discovery service dates.

SIC does not oppose Respondent's limited request to serve written discovery on or before April 27, 2026, provided that any order granting relief also confirms that SIC's April 23, 2026 service of written discovery requests is accepted and deemed effective as of April 23, 2026, that no other deadlines are modified, and that all discovery objections by both parties are preserved.

I. PURPOSE OF THIS LIMITED RESPONSE

1. SIC files this limited response to clarify the record and to avoid unnecessary discovery motion practice.
2. SIC does not seek sanctions, does not seek to strike Respondent's motion, and does not oppose Respondent serving written discovery on or before April 27, 2026, provided reciprocal and limited relief is granted.
3. SIC does not agree, however, with factual characterizations in Respondent's motion suggesting that April 22, 2026 was merely the "first day" for written discovery if that characterization conflicts with the Scheduling Order.
4. SIC also does not agree with any statement suggesting that SIC failed to respond to Respondent's request before the motion was filed. The parties exchanged emails on April 23, 2026, and Respondent's counsel stated that he did not oppose SIC's requested relief.



II. RELEVANT BACKGROUND

5. On April 23, 2026, SIC notified Respondent's counsel that SIC intended to serve its initial written discovery requests that day and to seek limited relief deeming that service timely, or alternatively permitting service on April 23, 2026.
6. Respondent's counsel replied that he interpreted April 22, 2026 as the first date to send written discovery, not the only or last date, and stated that, if SIC interpreted April 22 as a deadline, Respondent requested until April 27, 2026 to send its written discovery.
7. Respondent's counsel further stated by email that he did not oppose SIC's requested relief and suggested that the parties could proceed by joint motion if necessary.
8. On April 23, 2026, SIC served its first written discovery requests on Respondent by electronic mail. The served discovery consisted of: (a) SIC's First Set of Interrogatories; (b) SIC's First Requests for Production; (c) SIC's First Requests for Admission; and (d) Exhibits A–D to SIC's First Requests for Admission.
9. On April 24, 2026, Respondent filed a Motion for Extension of Time and/or Clarification with the Office of the Secretary and the Office of Administrative Law Judges, copying SIC. SIC had not agreed to the filed motion before it was filed.

III. CONTROLLING PROCEDURAL RULES

10. The Federal Maritime Commission's Rules of Practice and Procedure govern this proceeding. See 46 C.F.R. Part 502.
11. Under 46 C.F.R. § 502.71, before filing a non-dispositive motion, the parties must attempt to confer in good faith to determine whether there is opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement.
12. Under 46 C.F.R. § 502.102, motions for enlargement or reduction of time may be granted upon a showing of good cause. Motions filed after the scheduled date may be considered as requests to accept late filing where exceptional circumstances are shown or as justice may require. Responses to motions under this rule must be served and filed within five days after service of the motion.
13. Under 46 C.F.R. § 502.105, the Presiding Officer, for good cause, may enlarge time limits prescribed in Part 502.
14. To the extent Federal Rule of Civil Procedure 6(b) is considered through 46 C.F.R. § 502.12, Rule 6(b) likewise permits limited extensions for good cause and, after expiration of a deadline, on a showing of excusable neglect.

IV. SIC'S LIMITED POSITION

15. SIC does not oppose Respondent serving written discovery on or before April 27, 2026.
16. SIC respectfully requests, however, that any order on Respondent's motion be limited and reciprocal.
17. Specifically, SIC requests that the Presiding Officer enter an order:
 - a. Accepting and deeming effective SIC's April 23, 2026 service of its written discovery requests;
 - b. Allowing Respondent to serve written discovery on or before April 27, 2026;
 - c. Confirming that no other deadline in the Scheduling Order is modified;
 - d. Confirming that the order does not waive, resolve, or limit any objection by either party to the substance, scope, burden, relevance, privilege, admissibility, proportionality, or sufficiency of any discovery request, response, production, objection, or admission; and
 - e. Confirming that the order does not adopt any disputed factual characterization regarding the meaning of the April 22, 2026 date.
18. This limited relief will not prejudice either party. SIC served its written discovery one day after the date contemplated by the schedule, and Respondent seeks to serve its written discovery on April 27, 2026. The requested reciprocal clarification will allow the parties to proceed with discovery on the merits without changing the overall discovery schedule.
19. This limited relief will also promote efficiency by avoiding later disputes over the effective service dates for written discovery requests and the deadlines for responses and objections.

V. CONCLUSION

For the foregoing reasons, SIC respectfully requests that the Presiding Officer grant Respondent's motion only to the following limited extent:

1. Deem SIC's April 23, 2026 service of written discovery requests effective as of April 23, 2026;
2. Permit Respondent to serve written discovery requests on or before April 27, 2026;
3. Confirm that no other deadlines are modified;

4. Preserve all discovery objections by both parties; and
5. Decline to adopt any disputed factual characterization regarding the meaning of the April 22, 2026 date or the parties' meet-and-confer communications.

Dated: April 24, 2026

Respectfully submitted,

SOUTHERN INTERNATIONAL CO., LTD.

By: _____

Nguyen Tien Phuong

Director

Southern International Co., Ltd.

OTI Organization No. 033811

64 Truong Dinh, Xuan Hoa Ward, Ho Chi Minh City, Vietnam

Email: southern@southern.com.vn; nam@southern.com.vn

Phone: +84 775 192 912



Giám Đốc

Nguyễn Tiên Phương

**APPENDIX TO COMPLAINANT SOUTHERN INTERNATIONAL CO., LTD.'S
LIMITED RESPONSE AND STATEMENT OF NON-OPPOSITION
REGARDING WRITTEN DISCOVERY SERVICE DATES**

Exhibit 3.1: Email from SIC to Respondent's counsel dated April 23, 2026, serving SIC's First Set of Written Discovery Requests.

Exhibit 3.2: April 23, 2026 email chain from Respondent's counsel regarding interpretation of the April 22, 2026 date, Respondent's request to serve discovery on April 27, 2026, and Respondent's statement that it did not oppose SIC's requested relief.

Exhibit 3.3: April 24, 2026 email from Respondent's counsel filing Respondent's Motion for Extension of Time and/or Clarification, with attached motion.

CERTIFICATE OF SERVICE

I certify that on April 24, 2026, a true and correct copy of the foregoing Complainant Southern International Co., Ltd.'s Limited Response and Statement of Non-Opposition to Respondent's Motion for Extension of Time and/or Clarification Regarding Written Discovery Service Dates, together with the Proposed Order and Appendix, was filed with the Office of the Secretary of the Federal Maritime Commission by electronic mail and served by electronic mail upon Respondent's counsel and representative.

Filed with:

Secretary of the Federal Maritime Commission

Email: secretary@fmc.gov

Office of Administrative Law Judges

Email: judges@fmc.gov

Served upon:

Daniel W. Raab, Esq.

Law Offices Daniel W. Raab, P.A.

9555 North Kendall Drive, Suite 210

Miami, Florida 33176

Email: raabdaniel57@gmail.com

Email: raabd@bellsouth.net

Zia Kamali

Daynamez Group of Companies LLC

Email: kamali@daynamez.com

Dated: April 24, 2026

By: _____
 Nguyen Tien Phuong

Director

Southern International Co., Ltd.

OTI Organization No. 033811

64 Truong Dinh, Xuan Hoa Ward Ho Chi Minh City, Vietnam

Email: southern@southern.com.vn; nam@southern.com.vn

Phone: +84 775 192 912



Giám Đốc

Nguyễn Tiến Phương